

23NWCV04196 23NWCV04196

County: los-angeles

Division: Civil Law and Motion

Department: C

Hearing date: 2026-08-18

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Case Number: 23NWCV04196 Hearing Date: August 18, 2026 Dept: C

COYLE v. CITY OF MONTEBELLO, et al.

CASE NO.: 23NWCV04196

HEARING: 8/18/26 @ 9:30 AM

#6

TENTATIVE ORDER

Cross-Defendant

TERRY COYLE's Motion to Strike is GRANTED in part and DENIED in part as set forth below.

Moving Party to give NOTICE.

Cross-Defendant TERRY COYLE (Coyle) moves to strike portions of Cross-Complainant City of Montebello's (City) Cross-Complaint (Cross-Compl.) that requests attorney's fees.

Background

This

case concerns a vehicle collision. City alleges that on December 19, 2022, Montebello city bus driver Anthony de Leon was operating a city bus and headed northbound on Santa Gertrudes Avenue, in La Mirada, and making a left turn onto westbound Adelpha Drive, when Coyle, who was headed eastbound on Adelfa Drive, proceeded into the intersection and smashed into the side of the bus, damaging

it. (Cross-Compl., ¶ 7.) City further alleges that Coyle subsequently brought suit against the City, alleging negligence. Coyle later named the bus driver, Anthony de Leon, as a DOE Defendant. During the course of this litigation, City has discovered evidence that Coyle was 100% at fault. (Cross-Compl., ¶ 8.)

Based

thereon, City asserts causes of action for:

1.

Negligence;

and

2.

Negligence

Per Se.

Legal

Standard

The

grounds for a motion to strike are that the pleading has irrelevant, false or improper matter, or has not been drawn or filed in conformity with laws. (CCP §436.) A motion to strike is also properly directed to unauthorized claims for damages, meaning damages which are not allowable as a matter of law. (See *Commodore Home Systems, Inc. v. Sup. Ct.* (1982) 32 Cal.3d 211, 214.)

Where

the defect raised by a motion to strike or by demurrer is reasonably capable of cure, "leave to amend is routinely and liberally granted to give the plaintiff a chance to cure the defect in question."... A pleading may be stricken only upon terms the court deems proper..., that is, terms that are just.... It is generally an abuse of discretion to deny leave to amend, because the drastic step of denial of the opportunity to correct the curable defect effectively terminates the pleader's action.'" (*Velez v. Smith* (2006) 142 Cal.App.4th 1154, 1174-75.)

Discussion

A court

may not award attorney's fees, unless they are provided for by contract (CCP §

1033.5(a)(10)(A); statute (CCP § 1033.5(a)(10)(B); or a nonstatutory theory of law, such as the common fund doctrine or the substantial benefit rule (see CCP § 1033.5(a)(10)(C)). Including a prayer for attorney's fees does not create any obligation to award fees that are not specifically authorized by contract, statute, or nonstatutory theory of law. (Department of Forestry & Fire Protection v. LeBrock (2002) 96 Cal.App.4th 1137, 1142.)

Here,

Plaintiff seeks to strike the following allegations in the cross-complaint pertaining to recovery of attorney's fees:

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Paragraph

15 (First Cause of Action): that as a result of Coyle's alleged negligence, they "have incurred, and continues to incur, costs and expenses including, but not limited to, litigation costs, attorney's fees and other expenses to defend itself against Plaintiff's Complaint in this action."

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Paragraphs

27 and 29 (Second Cause of Action / general damages allegation): that Cross-Complainants "have suffered damages, and will continue to incur costs and expenses in defending themselves from Plaintiff's meritless lawsuit" and have "incurred and are continuing to incur litigation costs, attorney's fees and other expenses to defend itself against Plaintiffs' Complaint in this action."

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In

the Prayer, Cross-Complainants seek, among other things: "3. Costs of suit, including reasonable attorney's fees."

Coyle

argues that because City's Cross-Complaint only asserts tort causes of action for negligence and negligence per se, there is no contractual or statutory basis for the fees City has alleged. Moreover, Coyle argues that the attorney's fees are unrecoverable because they are fees City incurred in defending themselves in this action brought by Coyle. Therefore, the prayer for relief as to attorney's fees are quintessential litigation expenses governed, if at all, by the cost statutes (Code Civ. Proc., §§ 1032, 1033.5) after judgment—not a separate category of compensable tort damages.

In

opposition, City argues that the attorney's fees are recoverable under statute for "proceeding[s] [] not brought in good faith and with reasonable cause" and "actions or tactics, made in bad faith, [or] that are frivolous ..." (Code Civ. Proc. § 1038(a); Code Civ. Proc. § 128.5(a).) Statute governing motions for costs incurred defending a claim brought under Tort Claims Act provides public entities with a way to recover the costs of defending against unmeritorious and frivolous litigation. (*Laabs v. City of Victorville* (2008) 163 Cal.App.4th 1242.)

In

reply, Coyle argues that section 1038 establishes a procedural mechanism for a later cost award. It does not transform defense fees incurred in this case into damages recoverable under negligence or negligence per se. Additionally, Coyle argues that section 128.5 is a sanctions statute, not a damages statute.

Where

attorney's fees are recoverable as an element of tort damages, the attorney's fees allegations should be included as an element of the cause of action. (*Brandt v. Superior Court* (1985) 37 Cal.3d 813, 817.) Where attorney's fees are recoverable as costs of suit by way of noticed motion, they may be alleged in the prayer, but they need not be. (*Chinn v. KMR Property Management* (2008) 166 Cal.App.4th 175, 194 (disapproved on other grounds by *DeSaulles v. Community Hospital of Monterey Peninsula* (2016) 62 Cal.4th 175).)

Here,

attorney's fees are recoverable as costs of suit. As such, the allegations of attorney's fees in Paragraphs 15, 27 and 29 are improper because they are not recoverable as damages in the negligence and negligence per se causes of action. Accordingly, the motion to strike these paragraphs is GRANTED.

The

Court finds that City may seek attorney's fees in its prayer for relief. A court may award costs to a defendant that prevails in an action brought under the Government Claims Act (Govt C §§ 810 et seq.) when the court finds that the action was not brought "with reasonable cause and in the good faith belief that there was a justifiable controversy under the facts and law." (Code Civil Proc. § 1038(a); *Lee v. Department of Parks & Recreation* (2019) 38 Cal.App.5th 206, 215.) Section 1038 requires the plaintiff to meet two conditions: (1) good faith and (2) reasonable cause. (*Lee v. Department of Parks &*

Recreation, supra, 38 Cal.App.5th at 215.) A defendant is not required to show that the plaintiff lacked both good faith and reasonable cause in bringing and maintaining the action. A defendant may recover its costs if the judge finds that the plaintiff lacked either objective reasonable cause or a good faith belief that the action was justified. (Id.) (See *Ponte v County of Calaveras* (2017) 14 CA5th 551, 560 [finding that no reasonable attorney would have thought the plaintiff's claims were legally tenable; therefore, a CCP § 1038(a) award of costs to the defendant that prevailed on summary judgment was appropriate.])

Here,

Coyle's negligence and negligence per se causes of action against City require compliance with the Government Tort Claims Act, as City is a public entity. Accordingly, section 1038 is applicable to this action. City has filed a motion for summary judgment against Coyle. City contends that "During the course of this litigation, Defendants have discovered evidence that informs them that Plaintiff was 100% at fault; and therefore, Defendants bring this Cross-Complaint." (Cross-Complaint, ¶ 8). City states in its Motion for Summary Judgment that Coyle's total fault "is based on (1) the clear evidence of damage to the vehicles, showing exactly which vehicle crashed into the other; (2) Plaintiff's own testimony during her deposition; and (3) Plaintiff's medical record." (Defs.' MSJ, p. 1). Therefore, City has sufficiently demonstrated at the demurrer stage that Coyle may have lacked either good faith or reasonable cause in bringing and maintaining the action, and thus City is entitled to attorney's fees.

Accordingly,

the motion to strike the prayer for attorney's fees is DENIED.